

24TRCV02362 24TRCV02362

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Case Number: 24TRCV02362 Hearing Date: July 27, 2026 Dept: B

Moving

Parties: Plaintiff Barton Wachs M.D.

Responding

Party: Defendants Douglas Maupin and Maupin Development Inc.

Motion

to Substitute Barton Wachs, M.D. as Successor in Interest to Francesca Wachs

The Court considered the moving, opposition, and reply papers.

RULING

The motion is GRANTED.

BACKGROUND

On July 15, 2024, plaintiffs Francesca Wachs and Barton Wachs, M.D. filed a complaint against Douglas Maupin and Maupin Development Inc. for (1) breach of promissory notes, (2) open book accounts, and (3) accounts stated.

On

December 9, 2025, the Court granted an ex parte application to continue trial from January 5, 2026 to August 31, 2026.

On

April 30, 2026, the Court granted plaintiff's motion to continue trial. The trial was continued to December 14, 2026.

On

June 15, 2026, the Court granted plaintiff Barton Wachs, M.D.'s motions to compel responses to form interrogatories and to deem requests for admission admitted. The Court ordered sanctions against each defendant and their attorney in the amount of \$1100.

LEGAL

AUTHORITY

Following

the death of a party, any legal action by that party may only proceed upon substitution of the decedent's personal representative or successor in interest in her place. CCP §§377.31, 367. CCP §377.31 states that, "[o]n motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest."

CCP §377.32(a) states:

"The person who seeks . . . to continue a pending action or proceeding as the decedent's successor in interest under this article, shall execute and file an affidavit or a declaration under penalty of perjury under the laws of this state stating all of the following:

(1) The decedent's name.

(2) The date and place of decedent's death.

(3) 'No proceeding is now pending in California for administration of the decedent's estate.'

(4) If the decedent's estate was administered, a copy of the final order showing the distribution of the decedent's cause of action to the successor in interest.

(5) Either of the following, as appropriate, with facts in support thereof:

(A) 'The affiant or declarant is the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) and succeeds to the decedent's interest in the action or proceeding.'

(B) 'The affiant or declarant is authorized to act on behalf of the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) with respect to the decedent's interest in the action or proceeding.'

(6) 'No other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding.'

(7) 'The affiant or declarant affirms or declares under penalty of perjury under the laws of the State of California that the foregoing is true and correct.'

(b)

Where more than one person executes the affidavit or declaration under this section, the statements required by subdivision (a) shall be modified as appropriate to reflect that fact.

(c) A certified copy of the decedent's death certificate shall be attached to the affidavit or declaration."

DISCUSSION

Plaintiff Barton Wachs M.D. requests an order substituting him, as successor in interest, to Francesca Wachs, in place of Francesca Wachs as a plaintiff in this action, pursuant to CCP §§377.31 and 377.32.

Barton Wachs states in his declaration that Francesca Wachs died on July 29, 2024 in the County of Los Angeles. No proceeding is now pending in California for administration of Francesca's estate.

Francesca and Barton held interests in the promissory notes that are the subject of this action as individual receivables, and the notes were never assigned to any trust. Francesca and Barton were the settlors and original co-trustees of the Wachs Family Living Trust. Under the terms of the trust,

upon Francesca's death, he became the sole successor trustee and is the sole beneficiary. Francesca's interest in the promissory notes that are the subject of the action passed to him under the trust upon her death. He states that he is the successor in interest of Francesca and that no other person has a superior right to be substituted for Francesca.

In opposition, defendants object because the supporting papers are "inconclusive, offering only conclusory statements, with no objective evidentiary support," asserting that plaintiff Barton and plaintiff's counsel have been litigating this matter for two years before filing the motion for an order permitting continued representation of the decedent's interest. Defendant argues that plaintiff and plaintiff's counsel "impermissibly proceeded" in the matter and amended the complaint by changing the caption without requisite authority. Defendant seeks a continuance of the motion to conduct discovery.

In the reply, plaintiff asserts that the opposition does not dispute that Barton Wachs is the successor in interest and does not identify any deficiency in the declaration and offers no evidence that any other person holds an interest in the promissory notes or a right to prosecute the action. Plaintiff argues that the declaration satisfies each element. He filed a supplemental declaration correcting the name of the trust to "Wachs Family Trust," providing as an exhibit, excerpts of the trust restatement, amendment, and execution and notarial pages. He adds that Francesca and he have two sons, neither of which is a trustee, and that neither of them hold any present interest in the promissory notes that are the subject of the action, and neither has any right to prosecute the action. He clarifies his prior declaration where he stated that the notes were ever assigned to any trust to "[n]o separate assignment of either promissory note was prepared or executed, and both notes remain in Francesca's name and mine as the payee" and that on February 23, 2019, Francesca and he executed a General Assignment of Community Property, by which they transferred their community property to themselves as trustee of the trust. He states that to the extent that instrument encompassed their interests in the notes, he holds those interests as the sole successor trustee of the trust.

The Court finds that Barton Wach's declaration complies with CCP §377.32.

The motion is GRANTED.

ORDER

The motion is GRANTED.

Plaintiff

is ordered to give notice of this ruling.